



Appeal Decision

Hearing held on 20 August 2026

Site visits made on 19 and 21 August 2026

by Andrew Smith BA (Hons) MA MRTPI

an Inspector appointed by the Secretary of State

Decision date: 23 September 2026

Appeal Ref: 6006637

Land off Oakdene Crescent, Hatton, Warwick CV35 7BN

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) (the Act) against a refusal to grant planning permission.
 - The appeal is made by Altus Homes and Morro Partnerships against the decision of Warwick District Council.
 - The application Ref is W/24/0706.
 - The development proposed is redevelopment of the site and erection of 28 residential dwellings plus site access, parking, landscaping and associated infrastructure.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. A revised version of the National Planning Policy Framework (August 2026) (the Framework) was published three days before the Hearing. I am suitably content that the parties had sufficient opportunity to familiarise themselves with its provisions and any implications for the appeal scheme prior to relevant discussions taking place at the Hearing.
3. It has been brought to my attention that the emerging South Warwickshire Local Plan (the ESWLP) has reached the Regulation 19 consultation stage. Whilst the emerging plan provides an indication of the possible future direction of local planning policy, its content can be expected to considerably evolve prior to formal adoption. Accordingly, I afford only limited weight to the emerging policies of the ESWLP and shall determine the appeal on this basis.
4. A suite of revised plans and additional supporting documents were submitted shortly before the Council resolved to refuse planning permission on 19 September 2025 but were not taken into account in the Council's determination. Nevertheless, having considered the minor extent of the plan revisions and the nature and scope of relevant supporting documents, I am content that no party with a potential interest in the outcome of the appeal is prejudiced by me accepting the revised plans and additional documents for determination purposes.
5. Planning permission was originally refused for seven reasons. However, following the submission of the revised plans and supporting documents, together with additional evidence provided during the appeal process (including noise modelling data) and the progression of the planning obligation, the Council has indicated that it no longer wishes to defend its fourth, fifth, sixth, and seventh reasons for refusal. These relate to the noise environment for future occupiers, the provision of on-site

Public Open Space, site drainage, and carbon reduction aims. Accordingly, for the purposes of this decision letter, I shall formulate the appeal's main issues to reflect these circumstances.

6. The Council's remaining objections include their considerations that the proposal would amount to inappropriate development in the Green Belt whilst bringing forward development in an unsustainable location served by limited facilities and services without safe cycle and pedestrian routes available. On the basis that the relevant inappropriate development exception – which I shall come on to introduce in due course – requires development to be in a sustainable location with particular reference to a policy of the Framework that sets out various related principles, I shall consider these matters concurrently under the appeal's first main issue as set out below. I am satisfied that no party with a potential interest is prejudiced by me taking this approach.
7. A planning obligation pursuant to Section 106 of the Act (the legal agreement) is before me. This is dated 9 September 2026 and has been executed by the Council, the County Council, the appellant, and the relevant landowners. The legal agreement includes provisions relating to affordable housing, Public Open Space, sustainable drainage, reptile translocation, biodiversity net-gain, healthcare, education, libraries, road safety education, and maintenance of public rights of way. I shall refer to the legal agreement at points later in this Decision.

Main Issues

8. The main issues are:
 - Whether or not the proposal represents inappropriate development in the Green Belt;
 - Whether or not the number and concentration of affordable dwellings proposed at this location is acceptable;
 - The effect of the proposal upon the character and appearance of the area, having regard to the intended layout, scale, and density of development; and
 - Whether or not the harm by reason of inappropriateness, and any other harm, would be clearly outweighed by other considerations so as to amount to the very special circumstances necessary to justify it.

Reasons

Whether or not inappropriate development in the Green Belt

Relevant provisions of the Framework

9. The site lies in the West Midlands Green Belt. Policy DS18 of the Warwick District Local Plan (September 2017) (the Local Plan) confirms that national planning policy shall be applied to proposals within the Green Belt. The Framework states that development in the Green Belt is inappropriate unless it falls within one of the categories set out in Policy GB7. Inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances.

10. The provisions of Policy GB7 were explored at the Hearing. Discussions centred on Category 1(g), under which development meeting all four criteria (i-iv) may be regarded as not inappropriate. In relation to criteria (i) and (ii), it is common ground that the proposal would utilise 'grey belt' land, would not fundamentally undermine the purposes, taken together, of the remaining Green Belt across the plan area, and would respond to an evidenced unmet need for housing. I have no reason to take a different view on these matters.
11. Criterion (iii) of Category 1(g) requires the development to be in a sustainable location, with particular reference to Policy TR3 of the Framework. Policy TR3 sets out principles (a-e) that development proposals should reflect. These principles include identifying circumstances where development should be located sustainably and what that entails; ensuring opportunities are taken to utilise existing or proposed transport infrastructure; mitigating any significant adverse impacts on the transport network or highway safety; assessing environmental impacts; and, in rural areas, taking opportunities to improve walking, wheeling, cycling and public transport, and to enhance connectivity where such improvements exist and can be supported by the proposed development. I consider below whether the proposal complies with criterion (iii).
12. Criterion (iv) requires major development proposals to comply with Policy GB8, which, under Section 1, sets out the Golden Rules (a-c) for major housing development. It is common ground that suitable contributions would be made towards affordable housing and publicly accessible green space, thereby satisfying parts (a) and (c). Moreover, the legal agreement secures comprehensive provisions related to both affordable housing and Public Open Space, including separate 'Allotment' and 'Parks and Gardens' contributions should any on-site deficiencies arise with respect to these particular open space typologies.
13. For the avoidance of doubt, I am content that the Public Open Space to be provided would make a positive contribution to the landscape setting of the development and support nature recovery. Thus, with regard to parts (a) and (c) of the Golden Rules, I have no reason to take a different view to the parties. However, part (b) requires that necessary improvements be made to local or national infrastructure, a matter I return to below.

Sustainable location (Policy GB7(1)(g)(iii))

14. The site is situated adjacent to the Infill Village Boundary for Hatton Station. This is a small settlement containing a very limited range of facilities and services, principally comprising a railway station, a yacht club, and a nursery. These facilities are all located to the north of the site and are subject to accessibility constraints, particularly in relation to the useability and safety of Station Road as the connecting route. I consider these matters in greater detail below in the context of the railway station before assessing the sustainability of the location in relation to the proposed development and the requirements of Policy TR3 of the Framework.
15. Other facilities and services are available in the wider area but are generally located such that walking would not be a realistic means of access. For example, the nearest bus stops are approximately 1.1 kilometres away along Station Road. These stops are served only twice a week by a single return service between Leamington Spa and Henley-in-Arden. The route to them is in-part a high-speed vehicular corridor that is unlit and lacks footways or dedicated cycling infrastructure.

16. My attention has also been drawn to a demand-responsive transport service operating within the Hatton and West Warwick area, designed specifically for rural communities with limited conventional bus provision. However, based on the evidence before me, there is no certainty that future occupiers would be able to rely upon this service conveniently and consistently to meet their day-to-day travel needs.
17. A village shop and public house are located at Shrewley, approximately 1.7 and 1.8 kilometres from the site respectively. Although a canal towpath, whilst offering a lengthy connection, could theoretically be used as an alternative route to Station Road for walking or cycling purposes, it is neither surfaced consistently with a hard-bound material nor lit. My attention has also been drawn to facilities including a shopping village and swimming pool on Dark Lane, approximately 2.2 kilometres away. However, owing to the distances involved and the constraints affecting route quality and useability, these destinations are unlikely to be accessed on foot or by cycle. The nearest school, Ferncumbe Primary School, is approximately 2.3 kilometres away. Although it would not realistically be accessible on foot, I understand that a school minibus currently picks up and drops off pupils on Oakdene Crescent.
18. Hatton railway station comprises three platforms and provides rail services to a variety of urban destinations including Warwick, Leamington Spa, Stratford-upon-Avon, Birmingham and London. In the context of a small rural settlement, this represents an important and meaningful form of public transport provision. Even so, the frequency of trains to individual destinations remains relatively limited. For context, the station does not meet the Framework's definition of a 'well-connected station' because fewer than four trains per hour serve it throughout the daytime on a typical weekday and fewer than two trains per hour operate in any one direction.
19. Accessibility constraints also arise. To walk the approximately 350 metres between the site and the station, users must travel along Station Road, including the bridge crossing the railway line, where there are no meaningful dedicated facilities for either pedestrians or cyclists. Furthermore, two of the station's three platforms do not benefit from step-free access.
20. The appellant has argued that Station Road is best characterised as a rural shared carriageway where pedestrians, cyclists and motor vehicles interact within a low traffic environment. Recent traffic surveys undertaken near the railway bridge during school termtime recorded 64 two-way vehicle movements during both the morning peak (0800-0900) and evening peak (1700-1800), within a total daily flow of 653 vehicles. Recorded average vehicle speeds ranged between 23 and 26 mph, with 85th percentile speeds of around 30 mph. Consequently, and consistent with my site observations, it is fair to assert that Station Road experiences relatively low traffic volumes travelling at generally moderate speeds.
21. However, it cannot be overlooked that Station Road is principally designed to accommodate vehicular movement. The route is narrow and there are a range of physical constraints affecting useability, particularly for pedestrians, along the section between Oakdene Crescent and the railway station. Slimline grassed verges, frequently bounded by hedgerows and other vegetation, provide limited opportunities to step clear of the carriageway. Further, forward visibility is restricted in places by the road's curved alignment and undulating topography, and the route is also unlit.

22. While recently installed kerbing adjacent to the railway bridge has assisted the creation of a narrow informal recessed area across the bridge itself, opportunities to leave the carriageway safely in positions where the kerbing is in place at either end of the bridge are now particularly constrained. Although I accept that drivers are likely to exercise a degree of caution when approaching the bridge, the potential for direct conflict between vehicles and pedestrians is readily apparent. Moreover, whilst the likelihood of two vehicles passing each other on the bridge simultaneously with a pedestrian present is limited, it must be remembered that useability constraints apply along almost the entirety of the route from Oakdene Crescent to the railway station.
23. While it is relevant that no recorded personal injury collisions have occurred within a study area extending approximately 500 metres from the appeal site since the introduction of a revised speed limit in 2014, that factor must be treated with caution in light of the clear physical constraints evident on the ground.
24. I acknowledge that both Manual for Streets and Manual for Streets 2 emphasise that highway design should respond to local character and function, rather than impose rigid standards irrespective of context, and that their principles may appropriately be applied in this case. I also accept that the absence of continuous footways does not automatically render Station Road unsuitable for pedestrian use. Nonetheless, having regard to the particular circumstances at play and the observed traffic flows and vehicle speeds, Station Road cannot reasonably be regarded as providing a safe route for all users, particularly pedestrians.
25. CCTV survey evidence has been submitted to demonstrate pedestrian and cyclist use of the section of Station Road containing the railway bridge. Between 0700 and 1900 on a school termtime weekday, the survey recorded 70 pedestrian movements and 13 cyclist movements. Heatmap data generated from a widely used fitness tracking application has also been submitted in support of this position. During my own site visits, I likewise observed pedestrians and cyclists using the bridge.
26. It has been argued that, if a significant highway safety risk existed, pedestrian and cycle activity would be expected to be very limited. However, the extent of use must be viewed in the context that no alternative crossing of the railway line exists within the immediate area to facilitate movement between the northern and southern parts of Hatton Station. Consequently, it is likely that at least some journeys arise out of necessity rather than choice. In such circumstances, the recorded levels of activity do not demonstrate that the route is universally perceived as safe.
27. Turning to Policy TR3 of the Framework, it is necessary to make a judgement as to whether the proposal could generate a significant amount of movement in the context of the area within which it would be situated. Where it would, the policy indicates that development should be located in a sustainable location, or one capable of being made sustainable, taking account of planned improvements, including any to be provided for as part of the development itself.
28. An indicative forecast for vehicle trip generation has been prepared, with the proposed 28 dwellings expected to generate around 12 vehicle movements in the morning peak hour, nine in the evening peak hour, and around 112 movements per day overall. These are relatively modest forecast traffic volumes, and the Highway

Authority has raised no objection on grounds of traffic generation or the capacity of the highway network to accommodate the additional vehicular traffic.

29. Nevertheless, major residential development is proposed at a small rural settlement where connectivity constraints are readily pinpointable. Thus, 28 additional households, with the potential to produce trips via a range of modes (albeit some of sustainable categorisation), could reasonably be expected to generate a significant amount of movement when assessed in the context of the host area. I have had regard to the appellant's recent survey evidence in coming to this finding. Accordingly, the location should be sustainable, limiting the need to travel, particularly by private car, and providing a genuine choice of transport modes.
30. As set out above, Hatton Station contains only a very limited range of services and facilities and does not enjoy convenient access, by means other than private vehicle, to the majority of facilities available in the wider area. The principal exception is the nearest primary school, owing to the availability of a dedicated minibus service. In my view, the site's location does not limit the need to travel.
31. Moreover, future residents would be highly unlikely to walk or cycle beyond Hatton Station on a routine basis in order to meet day-to-day needs. This is due both to the distances involved and to the constrained useability and, in places, unsafe nature of the routes available. In terms of public transport, the nearest bus stops are not realistically accessible on foot. Consequently, future residents would be heavily reliant upon rail services in order to travel beyond the settlement without use of a private vehicle.
32. As previously identified, the railway station provides meaningful public transport connectivity to a range of destinations, albeit through a relatively infrequent service pattern. However, notwithstanding the station's proximity to the site, the connecting route is subject to significant useability and safety constraints, particularly for pedestrians. These shortcomings, when considered alongside accessibility limitations at the station itself, undermine any proposition that future residents would necessarily enjoy a genuine choice of transport modes.
33. The appellant has indicated a willingness to implement measures intended to reinforce the shared-use credentials of Station Road and thus improve its useability. Such measures include additional signage and carriageway markings to increase driver awareness near the railway bridge, together with coloured surface treatments to materials to the western side of the bridge to emphasise its suggested informal function as a pedestrian refuge. Also, a modest financial contribution towards local road safety initiatives is secured via the legal agreement.
34. However, these measures, whilst aimed at enhancing connectivity in a rural area, are relatively minor in nature and, in my judgement, would not substantively improve the suitability of Station Road for pedestrians or cyclists. Moreover, notwithstanding a suggested potential planning condition to secure a scheme of pedestrian connectivity improvements, uncertainty remains regarding the precise package of works that could ultimately be delivered, given that any highway interventions would require separate Section 278 agreement.
35. The appellant has also expressed a willingness to contribute towards a Traffic Regulation Order to introduce a 20 mph speed limit along Station Road. Such a measure could have the potential to enhance conditions for pedestrians and cyclists. However, there is no certainty that such an amendment would come to

fruition if the appeal were allowed. Moreover, no legally binding mechanism secures its delivery, and any purported change of speed limit would remain subject to further discussions with the Highway Authority and approval in conjunction with the Section 278 process.

36. Accordingly, notwithstanding the intended formalisation of school minibus stopping and turning facilities on Oakdene Crescent and the contribution that is secured towards maintaining public rights of way, it has not been demonstrated that consequential improvements to sustainable travel opportunities or local connectivity would result from the development.
37. Whilst I recognise that a development proposal should only be expected to mitigate highway safety impacts arising directly from the scheme, there is clear potential for the proposal to exacerbate existing deficiencies within a local network characterised by substandard pedestrian infrastructure. Moreover, significant residual pedestrian safety concerns would be fairly anticipated to remain if the development were to proceed as proposed. This finding derives principally from the scale of development and the consequent increase in movements that would inevitably be generated.
38. I note here that, whilst successful appeal decisions¹ elsewhere have been submitted in evidence, each relates to merely a single dwelling such that it is difficult to draw direct parallels with the scheme before me.
39. Accordingly, especially as the site's location fails to limit the need to travel, the proposal would not adequately support sustainable patterns of movement and would fail to suitably reflect the principles of Policy TR3 when read and considered as a whole. The intended provision of electric vehicle charging points, secure cycle storage, and Sustainable Welcome Packs does not alter my conclusions in this regard. Consequently, the development would not be located in a sustainable location as required by Policy GB7(1)(g)(iii) of the Framework.
40. I also note identifiable conflict with Policy TR1 of the Local Plan in so far as it requires development proposals to provide safe, suitable and attractive access routes and to demonstrate no detriment to highway safety – requirements that are not materially inconsistent with the Framework.

Necessary improvements to local or national infrastructure (Policy GB8(1)(b))

41. The proposal would make proportionate contributions towards a range of infrastructure requirements. Indeed, the legal agreement secures, amongst other matters, contributions towards education facilities, library services, Public Open Space, and the maintenance of public rights of way. However, my findings regarding the safety and useability of Station Road, including the identification of significant residual pedestrian safety concerns, call into question whether improvements to local highway infrastructure necessary to address the impacts arising from the proposed 28 dwellings have been adequately secured.
42. Emerging allocation B1/HAT within the ESWLP relates to a potential new settlement at Hatton, of which the appeal site forms a small part to its western extent. The allocation has emerged as one of two preferred options from an initial longlist of 12 potential locations originally consulted upon. It also falls within a

¹ Ref: APP/V2255/WW/25/3368690 & APP/B1930/W/24/3349774

geographical area identified as an emerging Spatial Growth Strategy Priority Area 2, with Priority Area 1 generally directing growth towards more sustainable locations and Priority Area 3 towards less sustainable locations.

43. The Council's Green Belt Exceptional Circumstances Topic Paper (July 2026) identifies the allocation area as having the potential to become a highly sustainable location. However, that conclusion is contingent upon the delivery of a comprehensive package of strategic and local infrastructure, including new railway crossings and a new access to the railway station. I note that there is currently no certainty that emerging allocation B1/HAT, together with its associated infrastructure package, will come forward or be delivered.
44. I accept that infrastructure of this scale extends beyond what could reasonably be required to mitigate the impacts of the appeal proposal alone. Nevertheless, in the particular circumstances of this case, necessary local highway infrastructure improvements have not been suitably identified, substantiated, or secured. This conclusion aligns with the position of the Highway Authority, which considers the mitigation measures proposed by the appellant to be inadequate. This is a matter of importance, as they are responsible for the safety of road users on the local highway network. Accordingly, notwithstanding the appellant's willingness to fund certain improvements, it has not been satisfactorily demonstrated that necessary improvements to local infrastructure would be delivered.

Conclusion on whether or not inappropriate development

45. I have found that the development would not be in a sustainable location and that the necessary improvements to local infrastructure required by the Golden Rules under Policy GB8 of the Framework would not be secured. Consequently, the proposal does not satisfy the exception for development that is not inappropriate in the Green Belt that is set out in Category 1(g) of Policy GB7 of the Framework.
46. As confirmed at the Hearing, it is common ground between the parties that no other exception within Section 1 of Policy GB7 is applicable. I have no reason to depart from that position. Accordingly, the proposal constitutes inappropriate development in the Green Belt. I shall consider the implications of this finding when assessing whether very special circumstances exist to justify the grant of planning permission.

Number and concentration of affordable dwellings

47. The proposal, whilst for 100% affordable housing, was not submitted on the basis of being a rural exception site. Moreover, as confirmed in the signed Statement of Common Ground, the scheme does not seek to meet a particular local housing need. It instead aims to contribute towards meeting unmet housing need as identifiable across the District as a whole. As such, as agreed by the parties at the Hearing, the provisions of Policy H3 (Affordable Housing on Rural Exception Sites) of the Local Plan are not relevant to the appeal proposal.
48. The Council's concerns are centred upon the number and concentration of affordable units at this particular rural location, which has raised concerns from a community cohesion standpoint. However, no associated local planning policy conflict has been clearly pinpointed. It is also of relevance that the Framework encourages development proposals to either meet or exceed up-to-date development plan requirements for the proportion and mix of affordable housing

tenures relevant to the location. In broad terms, this policy provision is geared towards promoting rather than restricting the delivery of affordable homes.

49. In this context, I find that no planning harm would materialise as a consequence of the number and concentration of affordable dwellings proposed at this location. Nevertheless, when I come on to apportion weight to the social benefits to materialise from the delivery of 28 affordable homes, it is relevant for me to factor in that the scheme has not been formulated to satisfy any particular local need.

Character and appearance

50. The appeal site is situated beyond the current defined limits of Hatton Station. It is clear of built development and well-vegetated, particularly across its eastern portion and along its boundaries where various established trees are in existence. Whilst the site possesses distinct rural qualities, it is not subject to any formal landscape designation and there are adjacent developed influences at play. These include a row of residential properties to the west, which back on to the site, and the railway line, which runs east-west in proximity to the site's northern boundary. It is also pertinent that the site has a constrained visual envelope, with publicly accessible views principally confined to Oakdene Crescent locations.
51. In terms of the on-site layout that is proposed, I do not find that an unduly dense or cramped form of development would materialise. Indeed, various gaps of differing size and specification between dwellings are proposed and elements of soft landscaping would be interspersed with new built form and associated parking to assist in softening the appearance of the development. Moreover, the proposed layout and dwelling designs would acceptably respect the composition of existing neighbouring development on both Oakdene Crescent and Antrobus Close. It is also noteworthy that built development would be setback from the site's eastern boundary so as to assist in limiting tree losses.
52. Even so, it is inevitable that a proposal for 28 dwellings rising to two storeys in height would have some form of adverse urbanising influence. This is most particularly owing to the site's present verdant and undeveloped composition as part of the wider countryside that envelops Hatton Station. However, given the edge-of-settlement influences that are apparent as well as the discreet and well-enclosed nature of the site, merely limited harm would be caused to the character and appearance of the area. There is thus some minor degree of conflict with Policies BE1 and NE4 of the Local Plan in so far as these policies require development proposals to consider their landscape context and to harmonise with, or enhance, the existing settlement in terms of physical form and land use – requirements that are not materially inconsistent with the Framework.

Other matters

53. I have noted objections/concerns raised by interested parties with respect to matters including: wildlife impact; separation distances; noise; vehicular safety; drainage; foul water disposal; and contamination. However, as I have ultimately found the proposal to be unacceptable for other reasons, it is not necessary for me to explore these matters any further here.
54. For the avoidance of doubt, whilst I have given due regard to the provisions of the legal agreement where relevant to do so, it has not been necessary for me to exhaustively assess all contributions secured against the relevant Community

Infrastructure Levy (CIL) tests. This is because the appeal has ultimately been unsuccessful and certain provisions of the legal agreement would not be capable of delivering betterment in the context of weighing the scheme's harms and benefits.

Whether very special circumstances apply

55. I have identified that the proposal represents inappropriate development in the Green Belt. The Framework confirms that substantial weight should be given to harm caused to the Green Belt, including harm to its openness. I note that a distinct loss of openness, most especially in a spatial sense, would be associated with the development of 28 dwellings upon a presently undeveloped parcel of land that extends to approximately 1.17 hectares in area. In addition, limited harm would be caused to the character and appearance of the area.
56. In terms of the proposal's benefits, 28 additional affordable housing units would make an effective use of land and be deliverable in the short-term in the context of a very significant housing land supply shortfall. Moreover, the latest published position is a 1.96 year supply, calculated using the standard method as the development plan housing requirement is more than five years old, which represents a 3,466 dwelling shortfall.
57. Further, these units would be delivered within a District that constitutes an expensive place to live in relative terms and where a clear under-delivery of affordable homes against calculated requirements is identifiable over the past five years. Further, the proposed housing mix and tenure (75% social rent and 25% shared ownership) align with the Council's requirements and are considered acceptable. Thus, even though the new dwellings would not directly respond to any particular local affordable housing need, very significant weight is fairly attributable to the social benefits that would be brought about by the scheme in a housing delivery sense.
58. Some minor additional social benefits would be fairly anticipated as a consequence of future occupiers participating in local community activities and groups. Further, the proposal would generate economic benefits, including employment during the construction phase and increased local expenditure and tax revenues following occupation. I attribute considerable weight to these economic benefits given the major nature of the development proposal.
59. Furthermore, having regard to conditions that would apply and related monitoring provisions secured via the legal agreement, the scheme would deliver a biodiversity net-gain of at least 10%. This attracts moderate positive weight as an environmental benefit. In addition, whilst the proposed on-site Public Open Space would principally serve the needs of future residents, it would be accessible to the wider community. As secured through the legal agreement, such provision attracts minor positive weight as a social benefit.
60. The scheme's benefits would, in cumulative terms, be substantial. However, such benefits would not clearly outweigh the substantial harm identified to the Green Belt (including harm derived from loss of openness), as well as limited harm in a character and appearance sense, so as to amount to the very special circumstances necessary to justify the development. Accordingly, conflict is identifiable with national decision-making policies pertaining to the Green Belt and with Policy DS18 of the Local Plan.

61. Moreover, the proposal conflicts with the development plan when read as a whole and material considerations, including the Framework, do not lead me to a decision otherwise.

Conclusion

62. For the reasons given above, the appeal is dismissed.

Andrew Smith

INSPECTOR

APPEARANCES

FOR THE APPELLANT

Sian Griffiths	Director, RCA Regeneration Ltd
Amol Pisal	Highways and Transport Consultant, Magna Transport Planning
Rupert Parkin	Altus Homes
Steven Bott	Altus Homes

FOR THE COUNCIL

Adam Walker	Principal Planning Officer
Matthew Shirley	Senior Environmental Health Officer
Dave Pilcher	Development Management Engineer, Warwickshire County Council

INTERESTED PARTIES

Garry Rollason	Chair, Shrewley Parish Council
Robert Wesbury	Vice Chair, Shrewley Parish Council
Karen Rollason	Local resident
Paul Tilley	Local resident
Ian Winter	Local resident
Simon Martin	Local resident
Ken Symons	Local resident

DOCUMENTS SUBMITTED AFTER THE HEARING

- A Substantially agreed draft version of the legal agreement, submitted via email by the appellant dated 27 August 2026
- B Updated schedule of draft conditions, submitted via email by the Council dated 28 August 2026
- C Agreed final draft version of the legal agreement, submitted via email by the appellant dated 7 September 2026
- D Completed legal agreement, dated 9 September 2026, submitted via email by the appellant dated 9 September 2026